

96. traffic passing over railway in India and railways in foreign countries. –

Where in the course of carriage of any consignment from a place in India to a place outside India or from a place outside India to a Place in India or from one place outside India to another place outside India or from one place in India to another place in India over any territory outside India, it is carried over the railways of any railway administration in India the railway administration shall not be responsible under any of the provisions of this chapter for the loss, destruction, damage or deterioration of the goods, from whatever cause arising, unless it is proved by the owner of the goods that such loss, destruction, damage or deterioration arose over the railway of the railway administration.

Comments

Section 96 lays down that in case of traffic passing over railways in India and railways in foreign country the railway administration shall not be liable for any loss, destruction, etc. unless such loss has taken place over the railway of the railway administration.

97. Goods carried at owner's risk rate. – Notwithstanding anything contained in Sec. 93, a railway administration shall not be responsible for any loss, destruction, damage, deterioration or non-delivery in transit, of any consignment carried at owner's risk rate, from whatever cause arising, except upon proof, that such loss, destruction, damage, deterioration or non-delivery was due to negligence or misconduct on its part or on the part of its servants.

Provided that –

- (a) where the whole of such consignment or the whole of nay package forming part of such consignment is not delivered to the consignee or the endorsee and such non-delivery is not provided by the railway administration to have been due to fire or to any accident to the train ;
or
- (b) where in respect of any such consignment or of any package forming part of such consignment which had been so covered or protected that the covering or protection was not readily removable by hand, it is pointed out to the railway administration on or before delivery that any part of the consignment or package had been pilfered in transit, the railway administration shall be bound to disclose the consignor, the consignee or the endorsee how the consignment or the package was dealt with throughout the time it was in its possession or control, but if negligence or misconduct on the part of the railway administration or of any of the servants cannot be fairly inferred from such disclosure, the burden of proving such negligence or misconduct shall lie on the consignor, the consignee or the endorsee.

Comments

Section 97 absolves a railway administration from responsibility in the absence of negligence or misconduct on its part for any loss, destruction, etc. of the consignment carried at owners risk rate.

Question of impleading the parties – procedure of – it is well settled law that the question of impleading the parties can be entertained only before the original Court and not before the Appellate Court.

98. Goods in defective condition or defectively packed. – (1) Notwithstanding anything contained in the foregoing provisions of this chapter, when any goods entrusted to a railway administration for carriage –

- (a) are in a defective condition as a consequence of which they are liable to damage, deterioration, leakage or wastage ; or
- (b) are either defectively packed or not packed in such manner as may be prescribed and as a result of such defective or improper packing are liable to damage, deterioration, leakage or wastage,

and the fact or such condition or defective or improper packing has been recorded by the consignor or his agent in the forwarding note, the railway administration shall not be responsible for any damage, deterioration, leakage or wastage or for the condition in which such goods are available for delivery at destination :

Proved that the railway administration shall be responsible for any such damage, deterioration, leakage or wastage or for the condition in which such goods are available for delivery at destination if negligence or misconduct on the part of the railway administration or of any of its servants is proved.

(2) When any goods entrusted to a railway administration for carriage are found on arrival at the destination station to have been damaged or to have suffered deterioration, leakage or wastage , the railway administration shall not be responsible for the damage, deterioration, leakage or wastage of the goods on proof by railway administration –

- (a) that the goods were, at the time of entrustment to the railway administration, in a defective condition, or were at that time either defectively packed or not packed in such manner as may be prescribed and as a result of which were liable to damage, deterioration, leakage or wastage; and
- (b) that such defective condition or defective or improper packing was not brought to the notice of the railway administration or any of its servants